KELLY O. TURNURE

Hon. Joseph Egitto, AJSC
Dutchess Family Court
50 Market Street
Poughkeepsie, NY 12601

May 10, 2021

**Re: the Matter of Russell v. Walsh (Docket# 154703)**

Dear Hon. Judge Egitto:

On March 24, 2021 I sent the attached letter to Hon. Kathie Davidson. Later that same day, I was grateful to receive a response from her office forwarding the matter to you as the Supervising Judge for Family Court in the 9th District Court. I am writing today to follow up that letter and to add significant developments that require your immediate attention.

**Background:**

As you may recall, my letter primarily focused on the crimes of Ms. Walsh and her deliberate abuse of the court in her case. Her lies and manipulations have directly led to 6 of her attorneys recusing themselves over ethical issues and indirectly creating such chaos that 3 judges have recused themselves. As of March 24, when I wrote my letter, only Hon. Gordon-Oliver and Hon. Morales-Horowitz had recused themselves. Now Hon. Humphrey has as well. Each new attorney or judge is essentially a reset. After nearly three years it's become an awful version of Groundhog's Day.

Ms. Walsh, you may remember, was caught drugging Steve in a scheme with her boyfriend for money in San Francisco. She was then diagnosed with Borderline Personality Disorder with sociopathic tendencies by a top forensic Psychologist in SF recommended by her own doctor. Emergency custody was given to Steve and a hearing set for October 2018. Ms. Walsh became agitated and caused an injury to her infant daughter sending her for medical care, she then attempted to abandon her daughter and flee the state, but was stopped. Finally, she and her family concocted the notion of a 'vacation' prior to Ms. Walsh entering residential care, as an excuse to violate an SF Court Order. Once in NY Hon. Gordon-Oliver ordered that Ms. Walsh live on her parent's Chappaqua compound, for Evie's safety, pending a mental health examination.

Two years later, Hon. Morales-Horowitz would grant Ms. Walsh full custody, release her from the requirements of a mental health examination, reverse Hon. Gordon-Oliver's determination that Ms. Walsh should be confined to her family home and a issued a 5 year permanent restraining order against Steve "on default" because he was not physically

Public copy: the child's legal name is shown as E.V.; personal email addresses are removed. Otherwise unchanged.

present at a visitation conference, but represented and available by phone in February 2020 as COVID began. The "final order" drafted by Ms. Walsh's now recused attorney Jonathan Guttridge was signed, without edit, and given to Ms. Walsh ex-parte and to this date has never been provided to Steve. Meanwhile, over a year later, Ms. Walsh and E.V. continue to live on her parents' estate continuing concerns about her ability to care for Evie on her own.

**A Tale of Two Defaults:**

Ironically on March 24th, the day of my letter to Hon. Davidson, Ms. Walsh genuinely defaulted in Westchester Family Court on a matter that had become an emergency for our family. Ms. Walsh did not show for an actual hearing. Neither did her lawyer. It was the second time in 3 weeks. She had similarly defaulted on March 10th, but Hon. Humphrey simply elected to reschedule. Later Ms. Walsh's attorney and the AFC would, both state to the court that Ms. Walsh had been properly served on both occasions (attached). Steve's attorney also testified on the record to Ms. Walsh's proper service.

The specific matter before Judge Humphrey never heard, was an extension of a 2 year Permanent Order of Protection granted to Steve in San Francisco against Ms. Walsh. After a long-form hearing in SF where Ms. Walsh's wealthy family had provided her with not one, but two attorneys, significant testimony and cross examination resulted in a very strong order against Ms. Walsh. In addition to standard language the order attempted to address Ms. Walsh's harassment of Steve through disinformation, libel, and revenge porn. Note that both of her attorneys specifically refused to represent Ms. Walsh in the renewal hearing.

That order spanning two years elapsed in June of 2020. No one in San Francisco imagined that a hearing would not be conducted in New York in all of that time. Steve requested protection in Westchester and a temporary order of protection was granted by Hon. Naber after reviewing the case and questioning Steve. But that mysteriously disappeared, without comment, from police databases in November 2020 after Hon. Morales-Horowitz recused herself according to police.

Steve noticed the court of this odd occurrence and reapplied for protection. Hon. Humphrey refused to provide protection on a temporary basis. Then after Ms. Walsh's double default, he again declined to provide our family protection pending a hearing blaming it on an issue with Steve's attorney. Steve filed an emergency pro se petition in late March on the same issue. That too was ignored.

On April 26, 2021, nearly a full year after Hon. Naber had granted Mr. Russell protection, and despite Ms. Walsh's double default. Steve was simply told that his matter had been reassigned to Hon. Schauer.

While Ms. Walsh was granted full custody of their daughter, released from mental health exams and house restrictions, and a 5 year order of protection was issued AGAINST Steve without a hearing for his "default" at a visitation conference despite appearing by phone with counsel present after my surgery; the double-default of Ms. Walsh is simply ignored. Hon. Humphrey recused himself from Mr. DiFabio's cases after he filed an ethics complaint against the Judge, but no reason was given by Hon. Humphrey for not responding to Steve's emergency motion.

**Emergency Action:**

Steve's Family Offense Petition and his emergency order simply requested the following... The failure of the court to do so has prevented Steve's daughter from having a father and subjected our family to harassment, libel, and attempts at arrest or SWATing.

1) It requested that his Permanent Order of Protection granted in San Francisco after a long-form hearing be extended 1 year or until Westchester was able to conduct a full hearing.
2) It requested that the initial visitation order authored by Hon. Gordon-Oliver be put back into place. It stated Ms. Walsh SHALL make their daughter available for visits 3-4 times per week while Ms. Walsh was confined to her parent's home for Evie's safety. Ms. Walsh has denied Steve access to his daughter since late 2019, rejecting 8 supervisors and later ALL supervisors, and otherwise unreasonably withholding consent based on the Hon. Morales-Horowitz "default" order which gave Ms. Walsh de-facto veto over visits.
3) Given that Ms. Walsh has now signed a letter to police stating her claims were false and that her statements about Steve were because she feared losing custody of her daughter (attached), Steve asked that Ms. Walsh's Order of Protection granted on "default" be immediately vacated. In both the Restraining Order and Battery cases in San Francisco, Ms. Walsh was firmly rebuked and her claims either dismissed with prejudice or withdrawn. Beyond that, the matter of her restraining order, now under appeal, is well understood. No Custody Order or Permanent Order of protection should ever have been issued without a hearing, a position well-articulated by Evie's attorney Jennifer Jackman in her filing with the appellate court.

**Summary:**

Though there is no excuse for the lack of care or discretion of recused Westchester Judges, I am enclosing the four volumes of research I put together for the book/ screenplay currently in production on Steve's case (attached) The court and police were

clearly misled and lied to by Ms. Walsh and her family. The scope and brazenness of the lies is staggering as is the denial of basic facts they previously testified to under oath. Mistakes in the face of such bold prevarication are understandable, but the coverup, the attempts to alienate Evie from her father, and ongoing denial of basic protections for our family is simply indefensible.

I respectfully request you address these matters to the maximum level possible and appropriate to your office including having both the docket and Hon. Morales-Horowitz decision turned over to Steve's attorney. We have been regularly requesting them for months but have yet to receive anything.

Sincerely,



**Kelly O. Turnure**

**CC:** Hon. Kathie Davidson, Hon. Michelle Shauer, Attorney for Petitioner (Max DiFabio), Attorney for Respondent (Christopher Weddle), Attorney for Child (Jennifer Jackman), NY Committee on Judicial Affairs

**Attachments:** 1) Letter to Hon. Kathie Davidson dated March 23, 2021. 2) Emails from Christopher Weddle, Counsel for Tara Walsh, and Jennifer Jackman, Attorney for the Child, confirming Ms. Walsh's default  3) Letter from Tara Walsh to the Chappaqua Police Department recanting abuse allegations + the conversation leading up to it 4) Letter to Hon. Furman regarding concerns over Ms. Walsh's trading Evie's relationship with her father for money 5) Copies of books being used as a reference for the book/screenplay will be arriving via UPS